

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: May 27, 2026 TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 1	22CV407099	Leigh Gibbs vs Yichieh Schiuvey et al	Motion: Summary Judgment/Adjudication OFF CALENDAR based on Notice of Withdrawal filed on 05/15/2026.
LINE 2	23CV422402	Tarek Eletr vs Matt Colquhoun et al	Motion: Summary Judgment/Adjudication Ctrl Click (or scroll down) on Line 2 for tentative ruling.
LINE 3	24CV441172	Arno Murayama vs James Nielsen et al	Motion: Leave to File Ctrl Click (or scroll down) on Line 3 for tentative ruling.
LINE 4	24CV448245	Hamid Khazaeli vs Julie Cliff et al	Motion: Compel Ctrl Click (or scroll down) on Line 4 for tentative ruling.
LINE 5	24CV448245	Hamid Khazaeli vs Julie Cliff et al	Motion: Sanctions Ctrl Click (or scroll down) on Line 4 for tentative ruling.
LINE 6	24CV448245	Hamid Khazaeli vs Julie Cliff et al	Motion: Seal Records Ctrl Click (or scroll down) on Line 4 for tentative ruling.

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LINE #	CASE #	CASE TITLE	RULING
LINE 7	25CV469439	Wendy Perkins et al vs Ford Motor Company et al	Hearing: Petition Compel Arbitration Ctrl Click (or scroll down) on Line 7 for tentative ruling.
LINE 8	25CV471079	Brian Ramirez Serbantes vs Deshon Holmes, II	Motion: Strike Ctrl Click (or scroll down) on Line 8 for tentative ruling.

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Calendar Line 2

Case Name: *Tarek Eletr v. Adobe Inc.*

Case No.: 23CV422402

Before the Court is Defendant Adobe Inc.’s (“Adobe” or “Defendant”) motion for summary judgment, or in the alternative, summary adjudication in its favor and against Plaintiff Tarek Eletr (“Plaintiff”).

I. BACKGROUND

According to the allegations of the operative First Amended Complaint (“FAC”), Plaintiff was employed by Adobe as a Senior Services Sales Executive from March 23, 2018, until his termination on January 1, 2023. (FAC, ¶ 18.) Throughout the entirety of his employment Plaintiff, who received “great” reviews and was promoted in January 2022 to Principal Services Executive, was over the age of 40. (*Id.*, ¶¶ 21-22.)

In May 2022, Plaintiff attended a zoom meeting with Erin Gahren, his manager, Matt Colquhoun, Gahren’s boss, and general manager Chris Kelly. During this meeting, Chris Kelly repeatedly cut Plaintiff off and told Plaintiff to not continue the discussion he was interacting in. (FAC, ¶ 23.) Kelly continued to cut off and shout at Plaintiff and demanded that he not talk. (*Id.*, ¶ 24.) Plaintiff told Colquhoun that Kelly’s conduct was inappropriate and requested that he speak to Kelly. (*Id.*, ¶ 25.) Plaintiff advised Gahren that if it happened again, he would inform Human Resources (“HR”) and file a complaint. (*Ibid.*) Gahren left the company shortly thereafter. (*Id.*, ¶ 26.)

On October 20, 2022, Plaintiff began receiving complaints from Colquhoun, who he now directly reported to, indicating that Plaintiff’s interactions and behaviors did not meet Adobe’s values. (FAC, ¶ 28.) Plaintiff did not initially hear back from Colquhoun after inquiring as to how he could improve his performance. (*Id.*, ¶ 29.) Plaintiff sent another email, which Colquhoun forwarded to HR. (*Ibid.*) HR advised that they would look into the matter. (*Id.*, ¶ 30.) Plaintiff spoke with HR in November 2022, and on December 2, 2022, HR concluded that there was nothing hostile in Colquhoun’s communications with Plaintiff. (*Ibid.*)

On December 9, 2022, Plaintiff received a call from Colquhoun advising him that Adobe had received bad feedback about his work performance and that effective January 6, 2023, his employment was terminated. (FAC, ¶ 31.) Plaintiff alleges that his termination was substantially motivated by his age and his having complained to HR about his treatment by Kelly and Colquhoun. (*Id.*, ¶¶ 41, 64, 65.)

Plaintiff filed the operative FAC on December 13, 2024 asserting the following causes of action¹: (1) discrimination in violation of the California Fair Employment and Housing Act (“FEHA”); (2) harassment in violation of FEHA (against Kelly and Colquhoun); (3) retaliation in violation of FEHA; (4) failure to prevent discrimination, harassment and/or retaliation in violation of FEHA; (5) retaliation for reporting illegal activity (Labor Code § 1102.5); (6)

¹ All claims are asserted against Adobe unless otherwise specified.